

Court No. - 34

Case :- WRIT - C No. - 13369 of 2008

Petitioner :- M/S Madhu Roller Flour Mills Pvt Ltd And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Others

Petitioner Counsel :- Mayank Agarwal, Seema Agarwal

Respondent Counsel :- H.P. Dube, A.N. Singh

Hon'ble Prakash Chandra Verma, J.

Hon'ble Ran Vijai Singh, J.

By means of this writ petition, the petitioners have challenged the validity of sub clause (1) of clause 4.20 of the Electricity Supply Code of 2005, which provides that the licensee shall pay interest @ 3% per annum, or as approved by way of credit in the bill of the consumer in the months of April, May and June.

This case is referable to sub clause (4) of Section 47 of the Electricity Act, 2003. Sub section (4) of Section 47 of the Electricity Act provides that the distribution licensee shall pay interest equivalent to the bank rate or more, as may be specified by concerned State Commission, on the security referred to in sub section (1) and refund such security on the request of the person who gave such security. Such code is a sub delegated legislation. Therefore, it has to be in conformity with the provisions of the Act.

The sub section (4) of Section 47 itself provides that the distribution licensee shall pay interest equivalent to the bank rate or more, as may be specified by the concerned State Commission.

We have heard Shri Mayank Agrawal, learned counsel for the petitioners and Shri H.P. Dubey, learned counsel for respondent.

Instead of holding the rule ultra vires, we provide that the sub clause (i) of clause 4.20 of the Code shall be read down in the light of sub section (4) of Section 47 of the Electricity Act and interest shall be paid, as provided under sub section (4) of Section 47, for the period sub clause (1) of clause 4.20 of the Code was in operation. Sub section (4) of Section 47 of the Electricity Act, 2003, which came into force on 10th June, 2003.

With the aforesaid observation/direction, the writ petition is disposed of.

Order Date :- 26.10.2010

AKSI

Court No. - 21

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Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And Others

Petitioner Counsel :- Mayank Agarwal, Seema Agarwal

Respondent Counsel :- H.P. Dube, A.N. Singh, S.C.

Hon'ble Yatindra Singh, J.

Hon'ble Ran Vijai Singh, J.

Passed over on the illness slip of learned counsel for the applicants.

Order Date :- 28.9.2012

Pratima

Court No. - 36

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Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And
Others

Petitioner Counsel :- Mayank Agarwal, Seema Agarwal

Respondent Counsel :- H.P. Dube, A.N. Singh, S.C.

Hon'ble Vineet Saran, J.

Hon'ble Ran Vijai Singh, J.

List again showing the name of Sri Amrit Lal Yadav as
counsel for the respondents.

Order Date :- 5.10.2012

AbHishek

(Ran Vijai Singh, J.) (Vineet Saran, J.)